

SENATE BILL 2403

By White

AN ACT to amend Tennessee Code Annotated, Title 4,
Chapter 29 and Title 49, relative to education.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 6, Part 3, is amended by adding the following as a new section:

(a) As used in this section:

(1) "Local assessment" means a standardized test or assessment selected by an LEA or public school that is administered to students at the sole direction of the LEA or public school. "Local assessment" does not include:

(A) A Tennessee comprehensive assessment program (TCAP) test or any other standardized assessment or screener administered to students by an LEA or public school pursuant to state law or any rule of the state board of education or the department of education; or

(B) An assessment, test, assignment, project, or quiz that is administered only to students in certain classrooms at the direction of the classroom teacher for purposes of assessing student proficiency in a subject, branch of a subject, or in the curricula or instructional materials assigned to students in the classroom; and

(2) "Public school" means:

(A) A public school that is managed and controlled by the local board of education for an LEA; and

(B) A public charter school, as defined in § 49-13-104.

(b) Each public school shall annually submit to the department of education a list of all local assessments administered to the students enrolled in the public school each school year, and the schedule for when each such local assessment is administered.

(c) The list submitted to the department must include the:

(1) Name of the local assessment, if applicable, or a description of the purpose of the local assessment;

(2) Subject area and grade level of the local assessment; and

(3) Administration schedule for the local assessment.

(d) The department shall develop a standardized form that all public schools must use to provide the information required pursuant to this section.

(e)

(1) The department shall compile the local assessment information reported pursuant to this section and make the information available to the public through an online database accessible through the department's website.

(2) The online database must:

(A) Clearly identify each local assessment administered by each public school, disaggregated by grade level and subject, as applicable;

(B) Present the information in a clear and consistent manner that allows students and parents to compare local assessment information across multiple schools and school districts; and

(C) Include the local assessment calendar for each public school, identifying on the calendar when each local assessment reported to the department pursuant to this section is administered.

(f) The department shall determine the deadline for public schools to report the information required in this section; provided, that it is the intent of the general assembly

that the information be reported and made publicly available before the start of each school year to allow students and parents to make informed educational decisions. Notwithstanding this subsection (f) to the contrary, the department shall make the information reported to the department pursuant to this section available to the public through the online database described in subsection (e) no later than July 1, 2027.

SECTION 2. Tennessee Code Annotated, Section 49-1-302(d)(2)(B)(iii), is amended by deleting the last sentence of the subdivision and substituting instead the following:

LEAs and public charter schools may also allow teachers to use the results from state-adopted benchmark assessments as a measure of student achievement.

SECTION 3. Tennessee Code Annotated, Section 49-1-302(d)(2)(B), is amended by deleting subdivision (xi) and substituting instead the following:

(xi)

(a) LEAs and public charter schools may allow teachers in the non-tested grades kindergarten through two (K-2) to use the results of the Tennessee universal reading screener described in § 49-1-905(c), as an approved alternative growth model to generate individual growth scores for teachers pursuant to the evaluation guidelines developed by the department.

(b) If a state-provided universal reading screener is administered to pre-kindergarten students at an LEA or public charter school, then the LEA or public charter school shall allow the pre-kindergarten teacher whose students were administered the screener to use the results of the screener as an approved alternative growth model for purposes of § 49-6-105(e) or the pre-k/kindergarten portfolio growth model to generate individual growth scores for teachers pursuant to the evaluation guidelines developed by the department.

SECTION 4. Tennessee Code Annotated, Section 49-1-903(8)(A), is amended by deleting "a universal reading screener" and substituting "the Tennessee universal reading screener".

SECTION 5. Tennessee Code Annotated, Section 49-1-905, is amended by deleting subsection (c) and substituting instead the following:

(c)

(1) Each LEA and public charter school shall annually administer the Tennessee universal reading screener to each student in kindergarten through grade three (K-3) during each of the three (3) administration windows established by the department.

(2) The department shall provide the Tennessee universal reading screener at no cost to LEAs or public charter schools. The Tennessee universal reading screener:

(A) Must be appropriate for students in pre-kindergarten through grade three (pre-K-3);

(B) May be administered to pre-kindergarten students; and

(C) May be used by LEAs and public charter schools to comply with the dyslexia screening requirements established in § 49-1-229 and with the universal screening requirements established in Tennessee's RTI² framework manual.

(3) The department shall determine the reading proficiency level scores required for the Tennessee universal reading screener.

(4) The results of the Tennessee universal reading screeners administered to students must not be used to assign accountability determinations for an LEA or school.

(5) Each LEA and public charter school shall submit the results of each Tennessee universal reading screener administered to students to the department. All student information must be maintained in accordance with the Family Educational Rights and Privacy Act (FERPA) (20 U.S.C. § 1232g), § 10-7-504, and all other applicable state and federal privacy laws.

SECTION 6. Tennessee Code Annotated, Section 49-1-905, is amended by deleting "universal reading screener" in subsection (d) and substituting "Tennessee universal reading screener"; by deleting "a universal reading screener" in subdivision (e)(1) and substituting "the Tennessee universal reading screener"; and by deleting subdivision (f)(3).

SECTION 7. Tennessee Code Annotated, Section 49-5-5619(a)(3)(F), is amended by deleting "universal reading screeners" and substituting "the Tennessee universal reading screener, as defined in § 49-1-903,".

SECTION 8. Tennessee Code Annotated, Section 49-6-903(a), is amended by deleting "the universal reading screener" and substituting "the Tennessee universal reading screener" and by deleting "a universal reading screener" and substituting "the screener".

SECTION 9. Tennessee Code Annotated, Section 49-6-1502, is amended by deleting "universal reading screener, or," in subdivisions (6)(A)(iv) and (6)(C)(iv) and substituting "or,".

SECTION 10. Tennessee Code Annotated, Section 49-6-1508, is amended by deleting "the Tennessee universal reading screener, or a universal reading screener approved by the state board of education" in subsection (b) and substituting "or the Tennessee universal reading screener" and by deleting subsection (d) and substituting instead the following:

(d)

(1) LEAs and public charter schools may allow teachers in the non-tested grades kindergarten through two (K-2) to use the results of the Tennessee universal reading screener as described in § 49-1-905(c), as an approved

alternative growth model to generate individual growth scores for teachers pursuant to the evaluation guidelines developed by the department.

(2) If a state-provided universal reading screener is administered to pre-kindergarten students at an LEA or public charter school, then the LEA or public charter school shall allow the pre-kindergarten teacher whose students were administered the screener to use the results of the screener as an approved alternative growth model for purposes of § 49-6-105(e) or the pre-k/kindergarten portfolio growth model to generate individual growth scores for teachers pursuant to the evaluation guidelines developed by the department.

SECTION 11. Tennessee Code Annotated, Title 49, Chapter 6, Part 60, is amended by adding the following as a new section:

49-6-6018. Assessment review board.

(a) There is established an assessment review board to annually review, under the direction of the department of education, the Tennessee comprehensive assessment program (TCAP) tests administered to students in the most recent school year. The review board must have full and complete access to the performance, results, and scores of students on the assessments under its review, as well as full and complete access to any assessment item for which sixty-five percent (65%) or more of the students who were administered the assessment scored incorrectly to identify any general themes, patterns, or areas of concern that may require teachers and schools to revise or expand instructional practices to achieve student success.

(b) The assessment review board consists of nine (9) public school teachers selected and appointed as follows:

(1) The governor shall appoint three (3) public school teachers, one (1) appointed from each grand division of this state who serves as a classroom teacher for students in one (1) of each of the following grade bands:

- (A) Grades three through five (3-5);
- (B) Grades six through eight (6-8); and
- (C) Grades nine through twelve (9-12);

(2) The speaker of the senate shall appoint three (3) public school teachers, one (1) appointed from each grand division of this state who serves as a classroom teacher for students in one (1) of each of the following grade bands:

- (A) Grades three through five (3-5);
- (B) Grades six through eight (6-8); and
- (C) Grades nine through twelve (9-12); and

(3) The speaker of the house of representatives shall appoint three (3) public school teachers, one (1) appointed from each grand division of this state who serves as a classroom teacher for students in one (1) of each of the following grade bands:

- (A) Grades three through five (3-5);
- (B) Grades six through eight (6-8); and
- (C) Grades nine through twelve (9-12).

(c) The commissioner of education shall convene the first meeting of the assessment review board, and shall convene no less than three (3) meetings of the assessment review board each year. Representatives from the department of education and the state board of education with knowledge of, and experience in, the development and administration of the TCAP tests annually administered to students in all grades and

subjects, and with knowledge of how student proficiency in the state academic standards tested on each annual TCAP test is determined, shall attend each meeting.

(d) Members of the assessment review board serve on the board until the member vacates the member's position on the board or until the member is notified, in writing, by the respective appointing authority that another public school teacher is being appointed to serve on the assessment review board in the member's stead.

(e) The assessment review board is administratively attached to the department.

(f) Members of the assessment review board serve without compensation, but may receive reimbursement for travel expenses in accordance with the comprehensive state travel regulations as promulgated by the commissioner of finance and administration and approved by the attorney general and reporter.

(g) The department of education may require each member of the assessment review board to execute a nondisclosure or confidentiality agreement before the member has access to TCAP test items or any information pertaining to the performance, results, or scores of students on any of the TCAP tests that may be reviewed. If a member refuses to execute a nondisclosure or confidentiality agreement required by the department, then the member vacates the member's position on the assessment review board and the respective appointing authority shall appoint another public school teacher who meets the required criteria to serve on the assessment review board.

SECTION 12. Tennessee Code Annotated, Section 4-29-249(a), is amended by inserting the following as a new subdivision:

() Assessment review board, created by § 49-6-6018;

SECTION 13. The headings in this act are for reference purposes only and do not constitute a part of the law enacted by this act. However, the Tennessee Code Commission is requested to include the headings in any compilation or publication containing this act.

SECTION 14. Sections 2-10 of this act take effect July 1, 2026, the public welfare requiring it, and apply to the 2026-2027 school year and each school year thereafter. All other sections of this act take effect upon becoming a law, the public welfare requiring it.